

SOTOMAYOR, J., dissenting

ty's view (but not Trump's), a former President whose abuse of power was so egregious and so offensive even to members of his own party that he was impeached in the House and convicted in the Senate still would be entitled to "at least presumptive" criminal immunity for those acts.

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Separate from its official-acts immunity, the majority recognizes absolute immunity for "conduct within [the President's] exclusive sphere of constitutional authority." *Ante*, at 609. Feel free to skip over those pages of the majority's opinion. With broad official-acts immunity covering the field, this ostensibly narrower immunity serves little purpose. In any event, this case simply does not turn on conduct within the President's "exclusive sphere of constitutional authority," and the majority's attempt to apply a core immunity of its own making expands the concept of "core constitutional powers," *ante*, at 606, beyond any recognizable bounds.

The idea of a narrow core immunity might have some intuitive appeal, in a case that actually presented the issue. If the President's power is "conclusive and preclusive" on a given subject, then Congress should not be able to "ac[t] upon the subject." *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U. S. 579, 638 (1952) (Jackson, J., concurring). In his *Youngstown* concurrence, Justice Robert Jackson posited that the President's "power of removal in executive agencies" seemed to fall within this narrow category. *Ibid.*, n. 4. Other decisions of this Court indicate that the pardon power also falls in this category, see *United States v. Klein*, 13 Wall. 128, 147 (1872) ("To the executive alone is intrusted the power of pardon; and it is granted without limit"), as does the power to recognize foreign countries, see *Zivotofsky v. Kerry*, 576 U. S. 1, 32 (2015) (holding that the President has "exclusive power . . . to control recognition determinations").